

102	Xiong vs. Jeunesse Global, LLC 2019-01095448	1. Motion for Leave to File Amended Complaint 2. Order to Show Cause re: striking DEF Jeunesse's answer Plaintiff's Motion for Leave to File a Second Amended Complaint is GRANTED. Plaintiff is to file and serve the Second Amended Complaint within 10 calendar days of this ruling. Legal Authority A motion to amend a pleading before trial must: (1) include a copy of the proposed amendment or amended pleading; (2) state what allegations in the previous pleading are proposed to be deleted, if any, and where, by page, paragraph, and line number, the deleted allegations are located; and (3) state what allegations are proposed to be added to the previous pleading, if any, by page, paragraph, and line number, the additional allegations are located. CRC 3.1324(a). A separate declaration must accompany the motion and must specify: (1) the effect of the amendment; (2) why the amendment is necessary and proper; (3) when the facts giving rise to the amended allegations were discovered; and (4) the reasons why the request for amendment was not made earlier. CRC Rule 3.1324(b). The court finds plaintiff's moving papers substantially comply with these requirements. ROA 518, 520. Motions for leave to amend a pleading are directed to the sound discretion of the court. CCP §§ 473(a)(1), 576. Courts may permit amendments at any stage in the proceedings, up to and including trial, so long there is no prejudice to the adverse party. <i>Atkinson v. Elk Corp.</i> (2003) 109 Cal.App.4th 739, 761. Delay in requesting leave to amend will not support denial of leave to amend unless the delay caused prejudice. <i>Higgins v. Del Faro</i> (1981) 123 Cal.App.3d 558. Increased discovery and attorneys' fees are not sufficient "prejudice": "it seems unreasonable to deny a party the right to amend where the only apparent hardship to the defendants is that they will have to defend." <i>Landis v. Superior Court</i> (1965) 232 Cal.App.2d 548, 557. Indeed, it is a "rare case in which denial of leave to amend can be justified." <i>Howard v. County of San Diego</i> (2010) 184 Cal.App.4th 1422, 1428; see also <i>Central Concrete Supply Co v. Bursak</i> (2010) 182 Cal.App.4th 1092, 1101-1102 ("Courts must apply a policy of great liberality in permitting amendments to the complaint when no prejudice is shown to the adverse party."). The motion is unopposed other than as to defendant Kim Hui. Defendant Hui opposes the amendment based on its contention that the PAGA claims are time-barred and/or were released in a prior settlement. See ROA 535. However, instead of the sufficiency of the claims, which is properly the subject of a demurrer, the focus of the court's inquiry here is whether prejudice would result from the proposed amendment. As the PAGA claims have not changed and defendant fails to identify any prejudice, the motion must be granted. See <i>Fair v. Bakhtiari</i> (2011) 195 Cal.App.4th 1135, 1147 ("where there is no prejudice to the adverse party, it may be an abuse of discretion to deny leave to amend"); <i>Hutcheson v. Superior Court</i> (2022) 74 Cal.App.5th 932 (holding the relation back doctrine applies to a substitute PAGA plaintiff stepping into a PAGA action to replace an
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		existing PAGA plaintiff who no longer wanted to prosecute the same PAGA claims that the substitute representative was willing to prosecute). OSC re: Striking Answer of Defendant Jeunesse No tentative ruling. The court will make its ruling at the hearing. Moving party to give notice.
103	Hai vs. Cognizant Trizetto Software Group, Inc. 2026-01563501	1. Motion to Compel Arbitration 2. Case Management Conference Defendant Cognizant Trizetto Software Group, Inc.’s motion to compel arbitration is GRANTED. Plaintiff Jamil Hai’s evidentiary objections are all OVERRULED. As an initial matter, Plaintiff does not dispute that the subject arbitration agreement is governed by the Federal Arbitration Act (FAA); that he has refused arbitration; that the agreement applies to his individual claims if the agreement is found to exist; or that if the agreement is found to exist, the Court could compel Plaintiff’s individual PAGA claim to arbitration while staying Plaintiff’s non-individual PAGA claim in this action. Instead, Plaintiff contends that (1) Defendant has failed to satisfy its burden of proving the existence of the agreement; and (2) if an agreement was formed, the agreement is unconscionable and should not be enforced. Existence of the Agreement Both the Federal Arbitration Act (“FAA”) and the California Arbitration Act (“CAA”) require the existence of a valid arbitration agreement before arbitration can be compelled. (See 9 U.S.C. § 2; Code Civ. Proc. [CCP], § 1281.2.) A trial court must order arbitration if it determines that an agreement to arbitrate the controversy exists. (CCP, § 1281.2.) The petitioner bears the initial burden of producing prima facie evidence of a written agreement to arbitrate the controversy, which can be satisfied either by setting forth the agreement’s provisions in the motion or by attaching to the motion a copy of the arbitration agreement purporting to bear the opposing party’s signature; “[f]or this step, it is not necessary to follow normal procedures of document authentication.” (<i>Gamboa v. Northeast Community Clinic</i> (2021) 72 Cal.App.5th 158, 165, internal quotes omitted; see also Cal. Rules of Court [CRC], rule 3.1330 [requiring same].) The burden then shifts to the opposing party to produce evidence to challenge the authenticity of the agreement. (<i>Gamboa, supra</i>, 72 Cal.App.5th at p. 165.) “If the opposing party meets its burden of producing evidence, then in the third step, the moving party must establish with admissible evidence a valid arbitration agreement between the parties.” (<i>Id.</i> at pp. 166-167.)